

STATE OF NEW YORK

707--A

Cal. No. 28

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. CLARK, MEEKS, MITAYNES, JACKSON, GALLAGHER, SIMON, STECK, FORREST, BRONSON, SEAWRIGHT, ANDERSON, ZINERMAN, KELLES, RAGA -- read once and referred to the Committee on Codes -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the executive law, in relation to directing the division of criminal justice services to promulgate safety standards and training requirements for the protection of law enforcement staff against the biological hazards posed by certain persons in custody

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 837 of the executive law is amended by adding a new
2 subdivision 25 to read as follows:

3 25. Promulgate rules and regulations for safety standards for the
4 protection of law enforcement staff against the biological hazards posed
5 by spitting of persons in custody. Such regulations and standards may
6 include the purchase of safety equipment, but shall not include the
7 purchase or use of a spit hood, spit mask, spit covering, spit cap, or
8 any device that completely covers the face of the individual under
9 control or under an attempt to control. Such rules and regulations
10 shall include, but not be limited to, training requirements for all law
11 enforcement officers to be completed prior to the use of any such
12 protective equipment.

13 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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